Republic of the Philippines
Bangsamoro Autonomous Region in Muslim Mindanao
**BANGSAMORO PARLIAMENT**
Bangsamoro Government Center, Cotabato City

**THIRD REGULAR SESSION**

**RESOLUTION NO. 207**

**RESOLUTION CONDEMNING THE DEATH OF SIX (6) INNOCENT MORO CIVILIANS IN GOKOTAN VILLAGE, PIKIT, COTABATO PROVINCE, CALLING FOR A THOROUGH AND INDEPENDENT INVESTIGATION INTO THE INCIDENT, AND EXPRESSING PROFOUND CONDOLENCES AND SYMPATHIES TO THE BEREAVED FAMILIES**

**WHEREAS,** the 1987 Philippine Constitution provides that:

*Section 5, Article II, Declaration of Principles and State Policies - The maintenance of peace and order, the protection of life, liberty, and property, and the promotion of the general welfare are essential for the enjoyment by all the people of the blessings of democracy; and*

*Section 1, Article III, Bill of Rights - No person shall be deprived of life, liberty, or property without due process of law, nor shall any person be denied the equal protection of the laws".*

**WHEREAS,** Article V, Section 3 of R.A. No. 11054 otherwise known as the "Organic Law for the Bangsamoro Autonomous Region in Muslim Mindanao" states that;

*"The Bangsamoro Government shall exercise the power expressly granted, those necessarily implied therefrom, as well as powers necessary, appropriate, or incidental for its efficient and effective governance and those which are essential to the promotion of general welfare. Within its territorial jurisdiction, the Bangsamoro Government shall ensure and support, among other things, the preservation and enrichment of culture, promote health and safety, enhance the right of the people to a balanced ecology, encourage and support the development of appropriate and self-reliant scientific and technological capabilities, improve public morals, enhance economic prosperity and social justice, promote full employment among its residents, maintain peace and order, and preserve the comfort and convenience of its inhabitants."*

**WHEREAS,** Title VIII, Chapter 1, Section 2 of the Bangsamoro Autonomy Act No. 13 or otherwise known as the "Bangsamoro Administrative Code" provides that:

*"The Ministry of the Interior and Local Government shall exercise general supervision over the constituent local governments units of the Bangsamoro Government, and ensure public safety and disaster preparedness, local autonomy, decentralization, and community empowerment."*

**WHEREAS,** in the early morning of December 29, 2021, a team composed of police and military personnel raided several houses in Barangay Gokotan, Pikit, Cotabato Province, which led to the deaths of civilians, among them some Moro Islamic Liberation Front (MILF) legitimate members;

**WHEREAS,** although the raid was a legitimate operation to serve an arrest warrant, it did not apprehend the targets of the operation and instead killed innocent members of the community;

**WHEREAS,** the assault resulted to six (6) fatalities and one (1) wounded identified as follows: Ustads Badrudin Dalid (64 y/o, member of 108th BC), Mujahid Hamsa (38 y/o, member of 128th BC), Abdulkahar Masulut (42 y/o) and Sharif Kabunto (18 y/o) members of 129th BC, all of Bangsamoro

Islamic Armed Forces (BIAF)-MILF; and Arbaya Dalid (31 y/o), a mother of three and also a student, who all died due to gunshots. Also, Hairon Timan (17 y/o) got wounded in this operation;

**WHEREAS,** another fatality was the Bde Cmdr of 129th BC, BIAF-MILF namely Abdul "Piraw" Macagpa who died due to drowning in the nearby river while carrying his firearms after receiving an instruction from his base commander to reposition their forces from the concerned areas;

**WHEREAS,** three more civilians were accused as members of the suspected group and arrested by the operatives namely Rahib Dalid (31yrs old, married), Samrah Tumalao (18yrs old, married), and Mohidin Dalagunan Mantok (47yrs old and member of 129th BC, BIAF-MILF). These personalities were turned-over by the operatives to Pikit Municipal Police Station;

**WHEREAS,** the raiding team failed to coordinate with the existing peace mechanism of the MILF and AFP/PNP, through the Ad hoc Joint Action Group (AHJAG), as agreed upon in the Joint Communique between the Philippine Government and the MILF signed on 6 May 2002 in Cyberjaya, Malaysia related to the isolation and interdiction of all criminal syndicates and other criminal groups:

**NOW, THEREFORE,** be it

**RESOLVED,** as it is hereby resolved by the Bangsamoro Transition Authority (BTA), to condemn in the strongest possible terms the death of six (6) Moro residents of Barangay Gokotan, Pikit, Cotabato Province committed by the composite raiding team of the Philippine National Police (PNP) and military personnel.

**RESOLVED, FURTHER,** to call on the AHJAG and Coordinating Committees on Cessation of Hostilities (CCCH) to conduct a thorough and impartial investigation of the incident and file the necessary administrative and criminal cases against the perpetrators as soon as possible.

**RESOLVED, FURTHERMORE,** to sincerely express our sincere condolences and sympathy to the grieving families of the victims and demand justice without delay.

**RESOLVED, FINALLY,** to furnish copies of this Resolution to the PNP, Armed Forces of the Philippines, AHJAG, CCCH and families of the victims, for information and appropriate action.

**ADOPTED,** Jumada Al-Akhirah 23, 1443/January 27, 2022.

Certified Correct:

**PROF. RABY B. ANGKAL**
Secretary-General

Attested:

**ATTY. ALI PANGALIAN M. BALINDONG**
Speaker

/Con.: PR624 and PR629